WORKING DRAFT. NOT FOR SIGNATURE. Highlighted items await CHSS confirmation.

Draft v1.8 · Nov 4, 2026 · Center for High School Success · for discussion; not legal advice

Agreement for Services: National 9th Grade Success Accelerator

> **The agreement of record is the GOLD working Doc in Google Drive:** https://docs.google.com/document/d/17fDxOc23g_yY1-wcpPbiAz-IqIYVKokNtxzxSTB697Q/edit?tab=t.x6vu7j4m1pb. This page is version 1.8: v1.7 (Jonah's October 30 edits and the agreed comment responses) with Appendix A rewritten on November 4 to the technical baseline Emily Phan and Phil Toynton proposed, the decisions from that call applied, and the remaining decisions in brackets and highlighted with their owner and Decisions number. The same text is the "v1.8" tab of that Doc, where tracked changes and comments continue; the October 30 markup and v1.7 are its earlier tabs. The Decisions, Notes, and Changelog tabs record why each change was made. **Working draft for discussion. Not for signature.**

Item	Entry
District/LEA	[District/LEA name]
State	[State]
Year 0 Term	[Start date] through [End date]
Year 1 Term	[Start date] through [End date]
Participating Schools	See Section Seven

Agreement Overview

This Agreement for Services ("Agreement") is between the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), and [District/LEA name] ("District"). CHSS and District may each be referred to as a "Party" and together as the "Parties." **Pending, counsel: confirm the contracting entity and authorized signer (O8)**

The Parties enter into this Agreement to document the Year 0 readiness and Year 1 implementation support provided through the Center for High School Success National 9th Grade Success Accelerator ("Accelerator").

Section One: Vision and Purpose

CHSS partners with high schools and districts to improve graduation rates and post-secondary education and career readiness, increase enrollment and per pupil funding, and reduce credit recovery costs by raising 9th Grade On-Track Rates. The Accelerator is designed to help selected districts establish the drivers, leadership, data routines, and school-level practices needed to achieve significant gains in 9th Grade On-Track Rates.

Section Two: Agreement Term and Accelerator Period

The Agreement covers two phases:

- **Year 0 Readiness:** [Start date] through [End date]. During this phase, CHSS and District will complete readiness planning; master schedule adjustments to enable 9th grade student cohorting, weekly (preferred) or every-other-week 9th Grade Success Team meetings, and a full-year 9th Grade Seminar (preferred name) or Advisory class; data access and reporting setup as described in Section Six; leadership and staff alignment; 9th Grade Success Team Lead selection; professional learning for district leaders, school leaders, 9th Grade Success Team Leads, 9th Grade Success Team participants, and 9th Grade Seminar teachers.
- **Year 1 Implementation:** [Start date] through [End date]. During this phase, CHSS will provide full implementation support for participating schools, and District and participating schools will implement the agreed-upon drivers that lead to major 9th Grade On-Track Rate gains and other progress.

A Party may terminate this Agreement before the end of the Term if the other Party materially breaches an obligation under this Agreement and fails to cure the breach to the reasonable satisfaction of the non-breaching Party within ten (10) days after written notice. Because Year 0 and Year 1 services are fully subsidized, termination will not create a refund obligation for District-paid fees under this Agreement.

This Agreement, including its data provisions and Appendix A, does not renew automatically. Continuation of Student Data sharing beyond the Term requires a new written agreement signed by both Parties.

Section Three: Working Agreements and Implementation Commitments

CHSS agrees to:

- Provide Year 0 readiness support, including school-by-school and district readiness assessment, school-by-school goal setting based on the assessments and school-by-school 9th Grade On-Track rate trends, leadership alignment, master schedule and intervention-time planning, school-team design, data readiness, and Year 1 implementation planning.
- Provide foundational professional learning through the 9th Grade Success Institute for participating principals, administrators, 9th Grade Success Team Leads, teachers, and other

relevant staff and additional specialized training for Team Leads.

- Provide Year 1 implementation support, including professional learning, job-embedded coaching, quarterly network learning opportunities, data support, and access to CHSS tools, protocols, screeners, technology resources, curricula, and other implementation resources.
- Provide data analytics and visualization support that enables school and district teams to continuously monitor student progress, identify trends and gaps, and translate findings into timely, effective action.
- Conduct regular implementation reviews with school and district leaders to assess implementation, outcomes, barriers, and next steps, including monthly reviews with designated district leaders and participating principals unless the Parties agree to a different cadence in writing.
- Protect Student Data as provided in Section Five and Appendix A, and provide the integration support described in Section 6.9.
- Promptly communicate material implementation concerns, barriers, and risks so the Parties can agree on appropriate corrective action to assure significant gains.

District agrees to:

- Designate a senior district leader with sufficient responsibility and authority to oversee implementation across participating schools.
- Provide a full-year (strongly preferred) or first-semester 9th Grade Seminar or Advisory using CHSS (strongly preferred) or another research-aligned curriculum, and build intervention time into the school day.
- Administer CHSS or comparable belonging and skills screeners, subject to Section 6.7, and provide credit and concept recovery opportunities during the school year.
- Organize 9th grade students into cohorts of approximately 120 to 150 students who share the same core teachers.
- Designate a 9th Grade Success Team Lead for each team and include, at minimum, core 9th grade teachers and appropriate student-support staff on each team. Elective teachers' participation encouraged if schedule permits.
- Provide protected 9th Grade Success Team meeting time during the school day. Weekly meetings are strongly preferred, as they lead to greater impact; meetings at least every other week are required.
- Use CHSS resources to support implementation, including the 9th Grade Success Navigator Platform (required), Kid Talk protocol (required), screeners (required where permitted by state law and District policy), data tools (required), and 9th Grade Seminar Curriculum (strongly preferred).
- Provide Student Data as described in Section Six and Exhibit D-1, through the automated feed described in Exhibit D-2.

- Notify CHSS promptly of material leadership, staffing, scheduling, policy, or data-system changes that may affect implementation.
- Work in good faith with CHSS to address implementation concerns, barriers, and risks and take mutually agreed-upon corrective action to assure significant gains.

Section Four: Statement of Intent Beyond Year 1

The Parties acknowledge that Year 0 readiness and Year 1 implementation are intended to establish the foundation for sustained improvement, but the work required to achieve and maintain breakthrough 9th grade outcomes must continue beyond Year 1. District states its intent to continue diligent implementation of the agreed-upon drivers after Year 1 and to work with CHSS in good faith to assess progress and remaining needs and partner to the extent feasible to achieve additional gains and embed effective practices.

No financial commitment beyond Year 1. This statement of intent does not obligate District to purchase Year 2 or Year 3 CHSS services, does not establish a fee for future services, and does not require either Party to enter a future agreement. Any continued services, scope, pricing, subsidies, and payment obligations shall be documented in a separate written agreement signed by both Parties.

Section Five: Student Data Privacy and Security

5.1 Purpose and relationship

The District and the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), a nonprofit organization exempt under section 501(c)(3) of the Internal Revenue Code, share student data under this Agreement so that CHSS can provide 9th Grade Success coaching, the CHSS Navigator platform, and on-track analytics to the District's participating schools (the "Services").

In providing the Services, CHSS and Organization act as a "school official" with a "legitimate educational interest" under the Family Educational Rights and Privacy Act (FERPA), 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS performs an institutional service for which the District would otherwise use its own employees, is under the District's direct control with respect to the use and maintenance of education records, and will not redisclose student data except as this Agreement permits. The District's disclosure of education records to CHSS for the Services does not require parental consent under FERPA when the conditions in this Section are met; notice and consent requirements that apply to the screeners are governed by Section 6.7. The District will confirm that its annual notification of FERPA rights includes, among the criteria for school officials with a legitimate educational interest, contractors and organizations to which the District has outsourced institutional services.

5.2 Governing privacy terms

The CHSS Data Privacy and Security Appendix (Appendix A) applies to all handling of student data under this Agreement in every case. At the District's election, recorded in Exhibit D-3, the Parties will also execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA) in the version adopted in the District's state, or, where CHSS has executed the NDPA with another district in the same state and signed a General Offer of Privacy Terms (NDPA Exhibit E), the District may accept that offer and deliver notice of acceptance. Where the NDPA has been executed or Exhibit E accepted, the NDPA and its state exhibits control as to any conflict with Appendix A or with any other provision of this Agreement concerning student data, and Appendix A continues to apply as a supplement for every matter the NDPA does not address, including Sections A.4(d) and (f), A.6, A.8, A.12, A.14, A.15, and A.16. If Appendix A conflicts with the body of this Agreement, Appendix A controls as to student data.

5.3 Definitions

- **Student Data** means any information from the District's education records that identifies, or could be used to identify, a student, including the elements listed in Exhibit D-1. Student Data is Confidential Information.
- **Screening Data** means responses and scores from the CHSS Belonging Screener and Skills Screener administered to students at participating schools. Screening Data is Student Data.
- **De-identified Data** means Student Data or Screening Data from which all personally identifiable information has been removed in accordance with 34 C.F.R. § 99.31(b)(1), such that a reasonable person in the school community who does not have personal knowledge of the relevant circumstances could not identify the student.
- **Aggregate Data** means statistics computed across groups of students, with any group smaller than ten students suppressed.
- **Navigator** means the CHSS web platform through which the Services are delivered.
- **9th Grade Success Team** means the District employees at a participating school who are responsible for 9th grade students, as designated by the District.
- **Coach** means the CHSS employee assigned to support a participating school.
- **Cohort** means the 9th grade students enrolled at a participating school in a school year in which the Services are provided.

5.4 Who may see student-level data

9th Grade Success Team members designated by the District may view student-level records, including names, for their school, to identify students, plan interventions, and monitor progress.

CHSS program, research, and leadership staff, and Organization staff, may view only De-identified Data and Aggregate Data, except that CHSS technical and security personnel designated under Appendix A.7 may access Student Data on a minimum-necessary basis to administer the platform, resolve data-feed problems, and investigate incidents, with every such access logged.

CHSS coaching staff. The Coach assigned to a participating school, and CHSS staff who directly support that school's screening and intervention work, may access student-level records, including names, for that school only, solely to prepare for and conduct 9th Grade Success Team meetings, screening review, intervention planning, and progress monitoring with that team, and for no other purpose. Each such person is a CHSS employee acting as a school official under Section 5.1, bound by Appendix A, trained annually in FERPA and privacy, under a confidentiality obligation, and subject to the personnel requirements in Appendix A.7. Every access to student-level records is logged under Appendix A.7. The District may limit or revoke any individual's access at any time by written notice, including limiting a Coach to viewing student-level records only during meetings with the school's 9th Grade Success Team. **Pending, Emily: school-level access bullets may refine this paragraph (O17)**

5.5 Permitted use and restrictions

CHSS and Organization will use Student Data solely to provide the Services to the District. CHSS and Organization will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Organization or any affiliated entity, including any entity organized under section 501(c)(4); or (e) disclose Student Data to any third party other than a subprocessor listed in Appendix A, except as required by law.

CHSS may create and retain De-identified Data and Aggregate Data to evaluate and improve the program, including analyzing Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not publish any result that could identify a student or, without the District's written consent, the District.

5.6 Return and destruction

On the District's written directive at any time, which may be given on the form in Exhibit D-4 or, where the NDPA applies, on NDPA Exhibit D, CHSS and Organization will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. Within sixty days after this Agreement ends, CHSS and Organization will destroy or return to the District all Student Data and Screening Data, including copies held by subprocessors, and will certify destruction in writing; copies in encrypted backups expire on the documented rotation, not to exceed ninety days, are never restored to production, and are certified as expired when that date passes. De-identified Data and Aggregate Data are not subject to this subsection.

5.7 Records of this Agreement

CHSS will provide the District an executed copy of this Agreement and Appendix A within ten business days of signature, and written notice at least ninety days before this Agreement or Appendix A expires.

Section Six: Data Access and Sharing

Successful implementation requires timely access to actionable data that allows 9th Grade Success Teams, school leaders, the District, and CHSS to identify students needing immediate support, monitor intervention progress and effectiveness, identify trends that indicate the need for additional Tier 1 supports, and assess the effectiveness of those supports.

6.1 District contacts and onboarding

The District designates, in Exhibit D-3 at the time it accepts a place in the Accelerator, (a) a technical contact responsible for the data feed, (b) a privacy contact (data privacy officer, technology director, or counsel) responsible for Appendix A, and (c) a program contact for each participating school, and will confirm or replace them within fifteen business days after this Agreement is executed. CHSS will schedule an onboarding call that includes the technical and privacy contacts before this Agreement is routed for signature, and no Student Data is transferred before execution.

6.2 Data provided by the District

The District will provide the elements marked Required in Exhibit D-1 for each Cohort, and may provide the elements marked Optional at its discretion. The District will provide data as it exists in its student information system; CHSS will report apparent errors to the technical contact and will not alter source data.

6.3 Scope of students and years

Student Data covers all 9th grade students at participating schools. For each Cohort, the District will continue to provide the Required elements for those students in subsequent school years through graduation or exit, for as long as this Agreement is in effect, so that student outcomes can be followed over time.

6.4 Student identifier

Each record will include the District's student identifier (and the state student identifier where available) so that records can be matched consistently across feeds and years. A District that prefers not to send its student identifier may instead send a stable pseudonymous identifier that it generates and maintains, provided the same identifier is used in every feed. Records carrying a pseudonymous identifier remain Student Data under this Agreement.

6.5 Delivery method and cadence

The District provides Student Data through an automated feed from its student information system or data warehouse, in one of the two forms described in Exhibit D-2, set up before the feed goes live. CHSS uses the automated feed with every District because it is the safer transfer, gives each 9th Grade Success Team current data at every meeting, which drives greater 9th Grade

On-Track Rate gains, takes the least District staff and Team Lead time, and lets CHSS work efficiently, which enables CHSS to offer the District lower-cost services in Year 2 and Year 3. Once the feed is live for Year 1, the District will provide updates weekly during the school year, and a final update within two weeks after the end of the school year and of summer school.

6.6 Changes affecting the feed

The District will notify CHSS at least thirty days before a change in student information system, grading scale, or term structure that would affect the feed.

6.7 Screeners

The District will review the full content of the CHSS Belonging Screener and the Skills Screener, item by item, before either is administered, and will determine what parent notice, opt-out, or prior written consent is required by District policy, by the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h), and by state law (in Arizona, A.R.S. §§ 15-104 and 15-117). CHSS will not open collection at a participating school until the District has authorized the instruments in writing and certified that any required notice has been given and any required consent is on file. [The District administers the screeners through 9th Grade Seminar teachers or other District staff it designates.] **Pending, Tara: who administers the screeners (O23)** CHSS will not add or change questions without the District's written approval and will provide each versioned instrument for that purpose. Where state law or District policy restricts or prohibits a screener's subject matter, the District may decline a screener in whole or in part, and the Services continue without it. Screening Data is Student Data for all purposes of this Agreement. **Pending, Tara and counsel: screener instruments and consent classification (O6)**

6.8 Navigator users

The District will designate which school leaders and 9th Grade Success Team members receive Navigator logins and will notify CHSS within five business days when a user's role changes or ends. District users are responsible for safeguarding their credentials.

6.9 CHSS integration support

CHSS will provide technical assistance to the District's technical contact to establish the data feed, including the file specification and data dictionary, SIS-specific report instructions where CHSS has them, mapping of the District's exports to the specification, a cleanup script where needed, and working sessions until the feed passes the acceptance test in Exhibit D-3. After acceptance, CHSS will provide assistance when the District's student information system, grading scale, or term structure changes. CHSS will monitor the feed, notify the technical contact within one business day when a transfer fails or expected data is missing, and provide a validation report for each load that distinguishes rejected files, rejected rows, and warnings. **Pending, Emily: staffing and hours for support through acceptance (O11)**

6.10 Timeline

No Student Data is transferred before this Agreement and Appendix A (or the NDPA) are executed. During Year 0 the District will name its contacts, confirm its feed method, and complete the mapping and acceptance test in Exhibit D-3; a test load of current-year data may be made after execution to validate the feed. The feed goes live for the 9th grade Cohort no later than [the first day of Year 1 instruction], and the Parties will complete acceptance by [thirty days before that date].

District Data/IT Liaison: [TO BE COMPLETED] · **Privacy contact:** [TO BE COMPLETED]

Section Seven: Participating Schools and Cost of Services

CHSS will provide the Year 0 and Year 1 services described in this Agreement to the participating schools listed below. Year 0 and Year 1 services are fully subsidized; the amount due from District under this Agreement is $0.

Participating High School	9th Grade Enrollment	District Cost for Year 0 + Year 1
[School name]	[Enrollment]	$0
[School name]	[Enrollment]	$0
[School name]	[Enrollment]	$0
Total District cost		**$0**

Any travel subsidy, pass-through cost, or other expense not expressly included in this Agreement must be approved in writing by both Parties before it is incurred.

Section Eight: Disclaimer of Warranties and Liability; Hold Harmless

DISTRICT ACKNOWLEDGES THAT SERVICES PROVIDED UNDER THIS AGREEMENT ARE PROVIDED ON AN "AS IS" OR "AS AVAILABLE" BASIS. ORGANIZATION MAKES NO WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, IN CONNECTION WITH THE SERVICES.

Except as specifically provided in this Agreement or otherwise required by law, Organization's officers, directors, employees, agents, and contractors will not be liable for indirect, incidental, special, or consequential damages arising from the services. In no event will the liability of Organization and its affiliates, individually or combined, exceed applicable liability insurance proceeds. The limitations in this Section do not apply to Organization's obligations under Appendix A, Sections A.4, A.8, and A.10, or to either Party's breach of confidentiality. **Pending, Jonah and counsel: whether these obligations are uncapped or subject to a stated super-cap, and the amount (O2)**

Each Party agrees to be responsible for its own wrongful or negligent acts or omissions, and those of its officers, agents, or employees, to the extent required by law. Each Party will maintain reasonable liability insurance coverage through commercial insurance or a reasonable self-insurance mechanism and will provide evidence of such coverage upon reasonable request. Upon reasonable request, CHSS will provide a certificate of insurance or other documentation evidencing applicable coverage, including any applicable cybersecurity or data-security coverage. Organization maintains cyber liability insurance of not less than $2,000,000 per claim, as further described in Appendix A. **Pending, Demian and counsel: confirm limits against Stand's certificate (O7)**

Section Nine: Additional Terms

Assignment. Neither Party may assign its rights or obligations under this Agreement without the other Party's written consent.

Relationship of the Parties. Nothing in this Agreement creates an employer-employee relationship, joint venture, legal partnership, or principal-agent relationship between the Parties.

Force Majeure. Neither Party is responsible for delay or failure caused by events beyond its reasonable control.

Sole Agreement. This Agreement, including its Appendix and Exhibits, constitutes the complete agreement between the Parties regarding its subject matter and may be modified only in a writing signed by both Parties.

Waiver. A Party's failure to enforce a provision does not waive that provision or any other provision.

Severability. If a provision is unenforceable, it will be reformed to the maximum extent permitted by law or severed, and the remaining provisions will remain in effect.

Counterparts and Electronic Signatures. This Agreement may be signed in counterparts and by electronic signature, each of which will be treated as an original.

Notices. Formal notices under this Agreement will be sent to the contacts identified below or to an updated contact provided in writing. Notices concerning Student Data or Appendix A will also be sent to the District's privacy contact and to CHSS's Privacy Officer named in Exhibit D-3.

Section Ten: Signatures

The authorized representatives below acknowledge that they have read, understand, and agree to the terms of this Agreement.

District / LEA	
Authorized signature	Date
Printed name	Title

Center for High School Success / Organization	
Authorized signature	Date
Printed name	Title

Appendix A: Data Privacy and Security

A.1 Definitions

Terms defined in Sections Five and Six (Student Data, Screening Data, De-identified Data, Aggregate Data, Navigator, 9th Grade Success Team, Coach, Cohort) have the same meaning here. **Subprocessor** means a third party that hosts or processes Student Data on CHSS's behalf.

A.2 Purpose and legal basis

CHSS receives Student Data solely to provide the Services described in the Agreement. The District designates CHSS as a school official with a legitimate educational interest under 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS is under the District's direct control with respect to the use and maintenance of education records and is subject to the redisclosure limits of 34 C.F.R. § 99.33. CHSS will comply with FERPA; with the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h) as it applies to screeners; with the Children's Online Privacy Protection Act (15 U.S.C. §§ 6501–6506) to the extent it applies; and with the student privacy laws of the District's state listed in the State Exhibit, as if CHSS were the District.

Joint FERPA compliance. The District and CHSS ensure compliance with FERPA together, as follows: the District includes contractors performing institutional services among the school officials named in its annual FERPA notification and determines which 9th Grade Success Team members may access Student Data; CHSS limits its use of Student Data to the Services, restricts access to the roles in Section 5.4 and A.7, trains every person with access, refrains from redisclosure except as this Appendix permits, routes parent and eligible-student requests to the District under A.11, reports any unauthorized disclosure under A.8, and destroys Student Data under A.10. Either party may raise a compliance concern with the other's privacy contact, and the parties will resolve it before further data moves.

A.3 Ownership and control

All Student Data and Screening Data, and all records CHSS creates or receives on the District's behalf, are and remain the property of the District. The District retains exclusive control over its Student Data, including who may access it and for what purposes. CHSS acquires no rights in Student Data other than the limited license to use it to provide the Services.

A.4 Authorized and prohibited uses

CHSS will use Student Data only to provide the Services and as instructed by the District. CHSS will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Stand for Children Leadership Center, Inc. or any affiliated entity, including any entity organized under section 501(c)(4); (e) disclose Student Data to any third party other than a Subprocessor under A.6, except as required by law and, where lawful, with prior notice to the District; or (f) share Student Data with any program partner, evaluator, funder, certifying body, or sponsor unless the recipient and the data shared are named in Exhibit D-3 and approved by the District in writing.

A.5 Data minimization

CHSS will collect only the elements listed in Exhibit D-1 and will not require the District to provide more data than is reasonably necessary to deliver the Services. CHSS will not request Social Security numbers, government identification numbers, payment information, or health records, and will receive disability-related status only where the District elects to provide it under Exhibit D-1. The Services do not collect, create, or store pupil-generated content (essays, portfolios, creative work, or similar); if a future feature does, CHSS will provide the District a description of how students retain possession and control of that content and may transfer it to a personal account before the feature is enabled. Changes to the element list require the District's written agreement.

A.6 Subprocessors

CHSS delivers the Services on industry-leading cloud hosting and data-platform providers, such as Microsoft or Google, and a commercial customer-relationship platform, each operating in the United States. CHSS engages only Subprocessors that maintain data privacy and security protections no less stringent than those this Appendix requires, under their standard data protection agreements or other written terms. CHSS maintains a current list of its Subprocessors, the function each performs, and the data each receives in its technical documentation, and will provide it to the District on request under A.13.

CHSS will give the District at least thirty days' written notice before engaging a Subprocessor in a new category to process Student Data, or before moving Student Data to a provider in a different category. The District may object in writing, and the Parties will work in good faith to resolve the objection before the change takes effect. If the objection is not resolved before the change takes effect, the District may require CHSS to exclude its Student Data from the new Subprocessor, disable the affected feature for the District, or terminate the data provisions of the Agreement without penalty, and CHSS will return or destroy the District's Student Data under A.10.

CHSS does not share Student Data with any program partner, evaluator, funder, certifying body, or sponsor. Any such recipient must be named in Exhibit D-3 with the data to be shared and approved by the District in writing before any disclosure.

A.7 Security program

CHSS maintains an information security program aligned with a recognized cybersecurity framework appropriate to the sensitivity of Student Data, with administrative, technical, and physical safeguards. Under that program CHSS:

- **Access.** Limits access to Student Data to authorized personnel as necessary to perform the Services, documents who has access, and removes access promptly when it is no longer authorized. A small set of CHSS technical staff may access Student Data to administer the platform, resolve data-feed problems, and investigate incidents, on a minimum-necessary basis, with each access logged; no other CHSS program, research, or leadership staff access identifiable Student Data.
- **Authentication.** Implements risk-appropriate authentication safeguards, including multi-factor authentication for privileged and CHSS-managed access.
- **Encryption and transfer.** Encrypts Student Data in transit and at rest, transfers it only by secure, encrypted methods, and never by unencrypted email.
- **Logging.** Maintains security-relevant access and administrative logs for at least ninety days, or longer where law requires, and provides log data relevant to an incident involving the District's Student Data on written request.
- **Vulnerabilities and endpoints.** Evaluates, validates, and applies security updates based on vulnerability severity, system risk, and operational impact, and maintains endpoint protection on devices and systems based on security risk.
- **Incident response.** Maintains and tests an incident response plan and a disaster recovery plan.
- **Responsible individuals.** Designates a privacy officer, responsible for compliance with this Appendix and for notices under A.8, and a security officer, responsible for the security program, both named in Exhibit D-3 and reachable by the District's privacy contact; CHSS notifies the District within ten business days when either designation changes.
- **Personnel.** Limits access to Student Data to personnel, including Coaches, who have completed a background check, are bound by confidentiality obligations, and have received privacy and security training before access and annually. **Pending, Demian and James: confirm background checks and training are current practice (O5)**

The systems, controls, and procedures that implement this program are described in CHSS's technical documentation, which CHSS keeps current and provides to the District under A.13. Requirements a District's own agreement adds in writing are set out in that District's entry in Exhibit D-5.

A.8 Breach notification

If CHSS validates and confirms that Student Data has been accessed, acquired, disclosed, or lost without authorization, whether or not the event meets a statutory definition of breach (a "Breach"), CHSS will notify the District's privacy contact without unreasonable delay and in no event later than seventy-two hours after that confirmation, unless notification within that time

would disrupt a law-enforcement investigation, by telephone and email, with the information then known: the nature of the Breach, a description of the Student Data involved, the students affected, steps taken to contain it, and a point of contact. CHSS will handle the incident under its incident response plan, update the District as the investigation proceeds, cooperate fully, and comply with any breach-notification law applicable to the District's data.

Notifying affected parents, guardians, and eligible students. Promptly after CHSS's notice, and in time to meet any deadline under the law of the District's state, the District and CHSS will agree on the affected population, the content of the notice, and the method and timing of delivery. The District decides whether notice is required and sends it, or directs CHSS to send it in the District's name; either way the notice goes out within the time required by the law of the District's state, and CHSS provides the District the list of affected students, a draft notice, and a point of contact for questions. CHSS will not notify students, parents, or the public on its own, except where law requires otherwise. CHSS will bear the reasonable costs attributable to its Breach, including parent notification, credit monitoring where offered, forensic investigation, legal fees, and regulatory fines.

A.9 Data location

Student Data is stored and processed only in data centers located in the United States. CHSS will not transfer Student Data outside the United States without the District's prior written consent.

A.10 Retention, de-identification, and destruction

- **During the term.** CHSS retains Student Data only as long as needed to provide the Services.
- **On request.** On the District's written directive at any time, CHSS will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. The District may use the NDPA's Directive for Disposition of Data (Exhibit D) for this purpose with no further notice required.
- **On termination.** Within sixty days after the Agreement ends, CHSS will destroy or return to the District all Student Data and Screening Data, including copies held by Subprocessors, and will certify destruction in writing signed by an officer. **Pending, Emily: deletion runbook across every store (O13)** Backups are managed under CHSS's documented retention schedule and are restored only for business continuity, disaster recovery, or operational purposes; the obligations of this section continue to apply to any Student Data restored from backup, and the certificate states the date by which backups containing the District's Student Data expire.
- **Certification of non-retention.** CHSS certifies that, upon completion of the Agreement, no Student Data or Screening Data will be retained by or available to CHSS or its Subprocessors, and that this certification is enforced by the destruction process, the backup expiration, the officer's certificate, and the District's audit and evidence rights under A.13. De-identified Data and Aggregate Data are not pupil records and are governed by the next paragraph.
- **De-identified and Aggregate Data.** CHSS may create De-identified Data in accordance with NIST de-identification standards or U.S. Department of Education guidance, by removing direct

and indirect identifiers and replacing the student identifier with a random token that is not derived from any student identifier or other personal information, under a key that CHSS destroys with the identifiable data. Before retaining or releasing any De-identified Data, CHSS will make and document the reasonable determination required by 34 C.F.R. § 99.31(b)(1) that a student's identity is not personally identifiable, considering direct and indirect identifiers, other reasonably available information, the cumulative risk of repeated releases, and the need for complementary suppression, and will provide that record to the District on request. Aggregate Data is a subset of De-identified Data. CHSS may retain De-identified Data and Aggregate Data after termination to evaluate and improve the program, including analyzing Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not transfer De-identified Data to any third party other than a Subprocessor unless that party agrees in writing not to attempt re-identification and the District has given prior written consent. Aggregate Data applies a minimum cell size and the other suppression methods described in CHSS's technical documentation. **Pending, Tara and Jonah: confirm row-level de-identified retention is needed (O10)**

- **Research and publication.** CHSS may publish findings based on De-identified Data and Aggregate Data. No publication will identify a student. CHSS will not identify the District in any publication without the District's prior written consent and will provide the District a copy of any report that includes the District's aggregate results at least fifteen business days before publication. The District may always see its own data.

A.11 Parent and eligible student rights

Requests by a parent or eligible student to inspect, review, or correct education records are handled by the District. CHSS will provide the Student Data it holds about the student, and will correct or delete data as the District directs, in a timely manner that supports the District's compliance with FERPA and applicable law.

A.12 Use of artificial intelligence

CHSS may use approved artificial-intelligence and data-analytics capabilities to analyze Student Data and to support educational analysis, next-step planning, and intervention recommendations when those activities are part of the Services. CHSS commits that: (a) neither CHSS nor any Subprocessor will use Student Data, or any output derived from identifiable Student Data, to train any artificial-intelligence or machine-learning model, including any large language model; CHSS may use De-identified Data and Aggregate Data, created under A.10, to evaluate and improve the Services within CHSS; (b) inferences the Services generate about a student are Student Data for all purposes of this Appendix, and intervention suggestions are recommendations for educators, who make all decisions about students; the District may ask CHSS to turn off AI-generated recommendations for its schools; (c) CHSS will give notice under A.6 before changing the category of provider whose models process Student Data; and (d) on request under A.13, CHSS will describe how the Services use artificial intelligence and which data elements are sent to a

model provider and at which step, and will complete the District's AI questionnaire where it has one. **Pending, Jonah and Emily: length of this clause; options drafted 11/4 (O21)**

A.13 Audit and assurance

CHSS assesses the security of the environment that holds Student Data at least annually against its chosen cybersecurity framework. On request, not more than once per year unless a Breach has occurred, CHSS will provide the District, subject to reasonable confidentiality and security restrictions: a summary of that assessment's findings and corrective actions; responses to the District's security questionnaire within thirty days; its current technical documentation, including the Subprocessor list; a description of its security program; and a certificate of insurance. If the District's state law or policy requires an audit right, CHSS will cooperate with an on-site or remote audit at a mutually agreed time, conducted so as not to compromise other districts' data. Where the District has executed the NDPA or accepted Exhibit E, the NDPA's audit provisions, including any state terms, govern in place of this paragraph. Additional assurance a District requires in writing, such as an annual third-party audit, is set out in that District's entry in Exhibit D-5.

A.14 Insurance

CHSS maintains, and will provide certificates on request for: cyber liability insurance of at least $2,000,000 per claim and in the aggregate, covering security and privacy liability, crisis management, network extortion, and media and content liability, maintained for two years after this Appendix ends; commercial general liability of $1,000,000 per occurrence and $2,000,000 aggregate; and professional errors and omissions liability of $1,000,000 per claim. A requirement may be met through self-insurance only where CHSS documents the program and its claims-paying capacity and the District accepts it in writing. **Pending, Demian and counsel: confirm limits against Stand's certificate (O7)**

A.15 Screening Data

Screening Data is collected by CHSS only after the District has approved the instruments and provided any required notice under Section 6.7. Screening Data is subject to every protection in this Appendix. Student-level screening results are visible to the 9th Grade Success Team and to CHSS coaching staff on the terms of Section 5.4; CHSS program and research staff see only De-identified and Aggregate Screening Data.

A.16 Term, termination, and survival

This Appendix is coterminous with the Agreement and continues until all Student Data has been returned or destroyed under A.10. Sections A.3, A.4, A.8, A.10, and A.11 survive termination. The District may suspend data transfers and CHSS's access to its Student Data immediately, by notice to CHSS's privacy contact, when the District reasonably determines that suspension is necessary to protect Student Data, and may terminate the data provisions of the Agreement on thirty days'

written notice if CHSS materially breaches this Appendix and does not cure within that period, or immediately for a breach that cannot be cured or that recurs. Suspension or termination of the data provisions suspends the Services that depend on Student Data; if those Services cannot lawfully continue, the District may terminate the Agreement without penalty, and CHSS will return or destroy Student Data under A.10. This Appendix does not renew automatically; continuation of Student Data sharing beyond the Agreement's term requires a new written agreement signed by both Parties.

A.17 Governing law and State Exhibit

This Appendix is governed by the laws of the District's state. The State Exhibit attached for the District's state sets out additional required terms, including: for Ohio, compliance with Ohio Revised Code 3319.321, 3319.325 through 3319.327, and Chapter 1347 (including breach notification under R.C. 1347.12) as if CHSS were the District, whether or not CHSS falls within the statutory definition of a technology provider; for California, the nine terms required by Education Code § 49073.1(b), which this Appendix carries as follows: (1) ownership and control, A.3; (2) pupil-generated content, A.5 (none held); (3) purpose limitation, A.4; (4) parent review and correction, A.11; (5) security actions and designated, trained individuals, A.7; (6) parent notification procedure, A.8; (7) non-retention certification and enforcement, A.10; (8) joint FERPA compliance, A.2; (9) no targeted advertising, A.4(b); together with the Student Online Personal Information Protection Act, Business and Professions Code § 22584; for Arizona, Arizona NDPA Exhibit G including the AI questionnaire, the screener consent requirements of A.R.S. §§ 15-104 and 15-117, and the District's determination under Section 6.7 whether the Belonging Screener may be administered at all; and for Missouri, Massachusetts, Utah, and other states, the state NDPA exhibit where one exists.

A.18 Order of precedence

This Appendix applies in every case. If this Appendix conflicts with the Agreement, this Appendix controls as to Student Data. If the District has executed the NDPA with CHSS or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict with this Appendix, and this Appendix continues to apply as a supplement for every matter the NDPA does not address.

A.19 National Data Privacy Agreement

The Center for High School Success (CHSS), a program of Stand for Children Leadership Center, Inc., will execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA), including any state-specific version and exhibits adopted in the District's state, on request from any partner district or its privacy consortium. **Pending, counsel: TEC multi-state NDPA not yet executed (O12)** CHSS is completing the multi-state NDPA offered through The Education Cooperative (TEC), which, once executed with its originating district, extends by Exhibit E to districts in Massachusetts, Maine, Colorado, Idaho, Illinois, Iowa, Kentucky, Missouri, Nebraska, New Hampshire, New Jersey, New York, Ohio, Rhode Island, Tennessee, Vermont, Virginia, and

Washington. **Pending, counsel: Exhibit E general offer (O12)** CHSS expects, subject to confirmation by its counsel, to sign the General Offer of Privacy Terms (NDPA Exhibit E) with the first executed NDPA in each state and to provide the originating district a standalone copy for the SDPC Resource Registry, so that other districts in that state may subscribe to the same terms by accepting Exhibit E and delivering notice of acceptance.

For purposes of the NDPA: the **Provider** is Stand for Children Leadership Center, Inc. (CHSS program); the **Service** is the 9th grade success coaching and the data platform and dashboards that support it; **Provider staff** include CHSS coaching staff, who are bound by the agreement and trained accordingly. CHSS will sign the version of the NDPA the District's state alliance offers; where a choice exists, CHSS prefers the version with a fixed three-year term. CHSS does not operate a student-facing application other than the Belonging and Skills screeners administered through the District's 9th Grade Success Team.

This Appendix applies in every case. Where a district has executed the NDPA, or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict, and Appendix A continues as a supplement for every matter the NDPA does not address.

Exhibit D-1: Data elements

Element	Required / Optional	Notes
District student identifier (state identifier also requested)	Required	Stable across years; see 6.4
Student name (first, last)	Required	Visible to the 9th Grade Success Team only; see 5.4
Grade level, school, enrollment status and dates	Required	Entry and exit dates support Cohort tracking
Course enrollments by term (course code, title, section)	Required	Teacher of record optional; include any CTE, dual-credit, or pathway flag the District's course catalog carries
Course marks by grading period and final marks	Required	Include grading scale or pass/fail flag
Credits attempted and earned by term	Required	Core of the on-track calculation
Cumulative GPA	Required	Weighted and unweighted where both exist
Attendance: daily absences and tardies; period absences where available	Required	Chronic absence computed by CHSS
Summer school enrollment, completion, credits, and outcomes	Required	Where the District operates summer school and records it in the SIS

Element	Required / Optional	Notes
Demographics (race/ethnicity, gender, EL status)	Required	For subgroup reporting at the District's election
IEP/504 status; economic status (free or reduced-price meals)	Optional, sensitive	Not needed for Navigator. Many districts treat these as their most protected categories and will decline; CHSS does not ask for them unless the District elects to provide them for subgroup reporting
Discipline (incidents, referrals, outcomes)	Optional	Not required for on-track; the District elects it where an evaluation outcome depends on it **Pending, Jonah: marked Required 10/30; Optional recommended (O22)**
State assessment scores, including incoming 8th grade ELA and math scores	Required	Where the District holds them; identifies risk before the first grading period **Pending, Jonah and Tara: elements named 11/2 in place of "assessments, state test scores, program participation" (O22)**
College admissions tests (PSAT, ACT, SAT)	Optional	Where the District holds them; usually delivered by the testing company, not the SIS
Program participation: CTE pathway enrollment and completion, industry certifications, dual-credit completion	Optional	Where the District holds them; often kept outside the SIS
Date of birth	Optional	Only where identifiers are unavailable for matching
Screening Data (Belonging, Skills)	Collected by CHSS under 6.7	
Data created in the Services: intervention plans and records, team meeting notes, on-track and risk flags, software-generated suggestions	Created by 9th Grade Success Team and CHSS users	Student Data for all purposes of this Agreement and Appendix A
Staff data: names, work email, role, school, Navigator username; teacher of record where provided	Required for Navigator users	Protected under Appendix A the same way as Student Data; listed as teacher data in NDPA Exhibit I where applicable

Exhibit D-2: Automated feed

Form	How it works	Who does what	Cadence
District-run feed	The District's SIS or data warehouse exports the specified	CHSS provides the specification, credentials, and	Weekly during the school year; nightly

Form	How it works	Who does what	Cadence
	files on a schedule and transfers them to CHSS by SFTP.	setup support. The District schedules the job.	where the District prefers
SIS vendor connection (where available)	The SIS vendor provides a read-only API or scheduled export directly to CHSS.	CHSS and the vendor configure it; the District authorizes it.	Nightly

Exhibit D-3: District elections and contacts

Item	District election
Privacy instrument (5.2)	□ Appendix A only □ Appendix A plus state NDPA □ Appendix A plus NDPA Exhibit E acceptance
Limits on CHSS coaching staff access (5.4), if any	□ None beyond Section 5.4 □ Meetings with the 9th Grade Success Team only □ Other: [ ]
Feed method (6.5)	□ District-run feed □ SIS vendor connection
Cohort tracking beyond 9th grade (6.3)	□ Yes □ 9th grade only
Optional elements provided (D-1)	[list]
Third parties approved to receive Student Data under Appendix A.4(f)	□ None □ [recipient, data shared]
District technical contact	[name, title, email, phone]
District privacy contact	[name, title, email, phone]
District program contact(s)	[name, school]
CHSS privacy officer (Appendix A.7)	[name, title, email, phone]
CHSS security officer (Appendix A.7)	[name, title, email, phone]

Data Onboarding milestones (January cohort)

When	What
By Dec 15	Acceptance communicated to District; the District names its technical, privacy, and program contacts as part of acceptance (6.1), announcement date determined
By mid-Jan	Onboarding call with the technical and privacy contacts; contacts confirmed.
Jan–Mar	Agreement and Appendix A (or NDPA) routed and executed, including board approval where required. Feed method confirmed; specification mapped. No Student Data moves yet.
After execution	Optional test load of current-year data; validation report; corrections.

When	What
By [30 days before Year 1 instruction]	Acceptance test passed: a full load of the Required elements, validated, with dashboards reviewed by the 9th Grade Success Team.
First day of Year 1 instruction	Feed live for the 9th grade Cohort; weekly updates.

Acceptance test. The feed passes acceptance when a complete load of the Required elements in D-1 for all participating schools is received by the automated feed, validated with no rejected files, with rejected rows and warnings below thresholds agreed in writing, and with on-track indicators reviewed by the District's technical contact against the District's own figures.

Exhibit D-4: Directive for Disposition of Data

To be completed by the District and delivered to CHSS's privacy contact. CHSS will act within sixty days and certify completion in writing.

Field	Entry
District	[name]
Scope of Student Data	□ All Student Data and Screening Data held under this Agreement □ The following only: [schools, cohorts, elements, date range]
Action	□ Destroy □ Return in [format] and then destroy
Timing	□ As soon as practicable, not later than sixty days □ On [date], not later than sixty days after it
Exclusions acknowledged	De-identified Data and Aggregate Data retained under Section 5.5 and Appendix A.10
Certification requested	□ Written certificate of destruction signed by an officer of CHSS, listing systems and backup expiration date
Authorized by	[name, title, signature, date]

Exhibit D-5: District-specific terms

This Exhibit applies only to the District named in each entry. Where an entry conflicts with Appendix A, the entry controls for that District.

Columbus City Schools (Ohio)

Appendix A section	Columbus requirement	CHSS commitment for Columbus
A.13 Audit and assurance	"Third party audits of security operations are	CHSS will provide the District annually the current third-party audit reports (SOC 2 Type 2 or equivalent) for the hosting and

Appendix A section	Columbus requirement	CHSS commitment for Columbus
	conducted annually."	platform providers that operate the environment holding the District's Student Data, together with the summary of CHSS's own annual assessment under A.13. **Pending, Emily and Jonah: whether the providers' reports satisfy Columbus, or CHSS commissions an independent assessment (O24)**
A.7 Vulnerabilities	"Deploy critical security patches within one week of release where reasonable and applicable."	CHSS will deploy critical security patches within one week of release where reasonable and applicable.
A.7 Logging	Log data for end-user, administrative, and maintenance activity on written request.	Met by Appendix A.7; no variation needed.
A.7 Authentication	Stored passwords protected using salted hashes; authentication protected by SSL/HTTPS encryption.	Stored passwords are protected using salted hashes, and authentication is protected by SSL/HTTPS encryption.
A.14 Insurance	Cyber liability insurance of at least $1,000,000.	Met by Appendix A.14; no variation needed.
A.10 Disposition	Destroy or return within ninety days of termination.	Met by Appendix A.10 (sixty days); no variation needed.
A.17 Ohio law	Comply with Ohio R.C. 3319.321, 3319.325 through 3319.327, and Chapter 1347 as if CHSS were the District.	Met by Appendix A.17; no variation needed.
A.2 COPPA	Warrant conformity with COPPA for any data collected directly from students.	The Services collect no information online from children under thirteen; the screeners are administered by the District under Section 6.7. To the extent COPPA applies to any data collected directly from students, CHSS warrants that its collection conforms to COPPA.

Technical documentation (reference)

CHSS maintains, outside this Agreement: (1) technical documentation describing the systems, data flows, security controls, Subprocessors, and procedures that implement Appendix A; and (2) a data-intake guide for the District's technical contact, describing the file formats, column definitions, validation rules, and transfer steps for the feed in Exhibit D-2. Both are dated, kept

current, and provided on request under Appendix A.13. Neither creates obligations beyond those stated in Appendix A. **Pending, Emily: first dated version of the technical documentation (O4)**